

HOUSE BILL 2355

By Howell

AN ACT to amend Tennessee Code Annotated, Title 39
and Title 68, Chapter 221, relative to unlawful
disposal of waste.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-17-102(d), is amended by
deleting the subsection and substituting:

(1) Except as provided in subdivision (d)(2), an offense under this section is a
Class C misdemeanor.

(2)

(A) An offense under this section is a Class B misdemeanor if the person
commits the offense while engaged in the business of removing accumulated
wastes from subsurface sewage disposal systems, as defined in § 68-221-402.

(B) Upon a conviction for a violation of this section as described in
subdivision (d)(2)(A), the court shall notify the commissioner of environment and
conservation who shall suspend or revoke the person's permit to engage in the
business of removing accumulated wastes from subsurface sewage disposal
systems, or refuse to issue the person such permit, as follows:

(i) For a first violation, the commissioner shall suspend the
person's permit, or refuse to issue the person such permit, as applicable,
for thirty (30) days;

(ii) For a second violation, the commissioner shall suspend the
person's permit, or refuse to issue the person such permit, as applicable,
for ninety (90) days; and

(iii) For a third or subsequent violation, the commissioner shall permanently revoke the person's permit or permanently refuse to issue the person such permit, as applicable.

SECTION 2. Tennessee Code Annotated, Section 68-221-413(a), is amended by deleting the subsection and substituting:

(1) Except as provided in subdivision (a)(2), a violation of this part or rules promulgated pursuant to this part is a Class C misdemeanor.

(2)

(A) An offense under § 68-221-406(a)(7) involving the unlawful disposal of sewage or effluent from a subsurface sewage disposal system is a Class B misdemeanor if the person commits the offense while engaged in the business of removing accumulated wastes from subsurface sewage disposal systems.

(B) Upon a conviction for a violation of § 68-221-406(a)(7) as described in subdivision (a)(2)(A), the court shall notify the commissioner who shall suspend or revoke the person's permit to engage in the business of removing accumulated wastes from subsurface sewage disposal systems, or refuse to issue the person such permit, as follows:

(i) For a first violation, the commissioner shall suspend the person's permit, or refuse to issue the person such permit, as applicable, for thirty (30) days;

(ii) For a second violation, the commissioner shall suspend the person's permit, or refuse to issue the person such permit, as applicable, for ninety (90) days; and

(iii) For a third or subsequent violation, the commissioner shall permanently revoke the person's permit or permanently refuse to issue the person such permit, as applicable.

SECTION 3. Tennessee Code Annotated, Section 68-221-713(f)(1), is amended by deleting the subdivision and substituting:

(A) Except as provided in subdivision (f)(1)(B), a violation of this part or rules promulgated pursuant to this part is a Class C misdemeanor.

(B)

(i) An offense under § 68-221-711(5) involving the unlawful discharge of sewage or any other waste or contaminant is a Class B misdemeanor if the person commits the offense while engaged in the business of removing accumulated wastes from subsurface sewage disposal systems, as defined in § 68-221-402.

(ii) Upon a conviction for a violation under § 68-221-711(5) as described in subdivision (f)(1)(B)(i), the court shall notify the commissioner who shall suspend or revoke the person's permit to engage in the business of removing accumulated wastes from subsurface sewage disposal systems, or refuse to issue the person such permit, as follows:

(a) For a first violation, the commissioner shall suspend the person's permit, or refuse to issue the person such permit, as applicable, for thirty (30) days;

(b) For a second violation, the commissioner shall suspend the person's permit, or refuse to issue the person such permit, as applicable, for ninety (90) days; and

(c) For a third or subsequent violation, the commissioner shall permanently revoke the person's permit or permanently refuse to issue the person such permit, as applicable.

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it, and applies to any violation committed on or after that date.